

Risk Review

By: BS
Date: 10-2-12

Approved as to
only:
D. White
Date: 10/1/2012

**CONTRACT BETWEEN THE WYOMING DEPARTMENT OF HEALTH,
AGING DIVISION AND CITY OF CHEYENNE TRANSIT**

1. **Parties.** The parties to this Contract are the Wyoming Department of Health, (Department), Aging Division [Agency], whose address is: 6101 Yellowstone Road, Suite 259B, Cheyenne, WY 82002, and City of Cheyenne Transit. [Contractor], whose official mailing and physical address is: 322 W Lincolnway, Cheyenne, WY 82001. This Contract pertains to the Senior Services Section.
2. **Purpose of Contract.** The purpose of this Contract is to set forth the terms and conditions by which the Contractor shall provide supportive services to persons 60 years or older throughout the State of Wyoming in accordance with Attachment B (Senior Services Title III-B Program Grant Application[Grant Application]), which is attached to this Contract and incorporated herein by this reference.
3. **Term of Contract.** This Contract is effective when all parties have executed it and all required approvals have been granted [Effective Date]. The term of the Contract is from Effective Date or October 1, 2012, whichever is later, through December 31, 2013. All services, as described in the Attachment B (Grant Application), shall be completed from Effective Date or October 1, 2012, whichever is later, through September 30, 2013. All reports and transactions, as detailed in Section 5 of this Contract and Attachment A (Statement of Work), which is attached to this Contract and incorporated herein by this reference, shall be completed by December 31, 2013.

By law, contracts for professional or other services must be approved as to form by the Attorney General and approved by the Procurement Services Division of the Department of Administration and Information, Wyo. Stat. § 9-1-403(b)(v), and all contracts for services costing over one thousand five hundred dollars (\$1,500.00) must be approved by the Governor or his designee as well, Wyo. Stat § 9-2-1016(b)(iv).

4. **Payment.**

- A. Agency agrees to pay the Contractor for the services described in Attachment B (Grant Application) for the period of October 1, 2012, through September 30, 2013. The payments under this Contract shall not exceed the federal and state funds allocated to the program. Payments for the Title III Program shall be made within forty-five (45) days of the first day of each month after services have been provided as required during the term of the Contract, providing all Grant Application and Contract obligations are being met. Otherwise, payments may be withheld or modified as stated in Attachment A (Statement of Work).
 - (i) The total payment under this Contract shall not exceed fifty-one thousand four hundred sixty-six dollars (\$51,466.00).

- (ii) The maximum amount of federal funds, CFDA# 93.044, shall not exceed forty-five thousand one hundred fourteen dollars (\$45,114.00).
 - (iii) The maximum amount of state funds shall not exceed six thousand three hundred fifty-two dollars (\$6,352.00).
 - (iv) The required minimum local match to the federal funds shall be no less than one thousand six hundred nine dollars (\$1,609.00).
- B.** No payment shall be made by the Agency until the Contractor has met all the requirements of the Grant Application.
- C.** Payment shall be delayed for the following reasons:
 - (i) If the required reporting documents are not completed correctly and/or are not received by the Agency by the due dates set forth in Section 5 of this contract and Attachment A (Statement of Work);
 - (ii) If the complete and additional information requested by the Agency is not received by the Agency by the due dates set forth in the request and/or notification documentation from the Agency; and/or;
 - (iii) Responsibilities of the Contractor, as detailed in Section 5 and Attachment A (Statement of Work) of this Contract, are not adhered to and/or complete and accurate by the due date set forth in Section 5 of this contract.
- D.** The Agency shall be entitled to recover from the Contractor any full or partial payment made under this Contract for:
 - (i) Any payments used for purposes not authorized by this Contract;
 - (ii) Any payments for services the Contractor is unable to provide;
 - (iii) Any payment for services the contractor did not provide but was required to provide under the Contract;
 - (iv) Any payment for services that are performed outside the requirements of the Contract;
 - (v) Any balance held by the Contractor at the termination of this Contract for services that have not been provided; or,
 - (vi) Any other payment that are later found to be excessive or erroneous regarding the services contracted for in this Contract.

5. Responsibilities of Contractor. The Contractor agrees to:

- A.** Provide the services described in the Grant Application, and any subsequent revisions to the Grant Application, submitted by the Contractor for the period of October 1, 2012 through September 30, 2013 and approved by the Agency. All revisions to the Grant Application require written pre-approval from the Agency.
- B.** Provide services utilizing local resources, and the funds provided under this Contract, in compliance with:
 - (i) The Older Americans Act of 1965, as amended;
 - (ii) Wyoming Department of Health, Aging Division, Operational Rules, and Agency Policy Information Notices.
- C.** Utilize all required Agency forms and reporting mechanisms, and transmit in the desired format in accordance with the specifications, and by the date specified in Attachment A (Statement of Work) as requested by the Agency. Such records and reports may include, but are not limited to, the following:
 - (i) The Quarterly Program and Financial Reports, which are due each quarter and outlined in Attachment A (Statement of Work).
 - (ii) The Year End Payment/Adjustment Reports, if necessary, are due within ten (10) days of receipt of final payment.
- D.** Prior to providing services, Contractor shall complete all release of information forms, evaluation forms, and/or service plans, including client signature and date. Forms shall be kept on-site and available for review by the Agency.
- E.** Monthly statistical data, as required by Agency guidelines and the National Aging Program Information System (NAPIS), as detailed in Attachment A (Statement of Work).
- F.** Any amount paid to Contractor, which exceeds the total amount of allowable expenditures made by the Contractor in the Contract period shall be refunded to the Agency, no later than ten (10) days after receipt of overpayment letter from the Agency.
- G.** Minimize the time elapsing between the transfers of funds from the Agency to the Contractor's payout of funds.
- H.** Work cooperatively with other community entities to ensure quality services under this Contract.

- I. Agency shall have the right to monitor all activities related to this agreement that are performed by Contractor or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time, to bring experts and consultants on-site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers and records pertinent to this agreement; and to observe personnel in every phase of performance of the related work.
 - (i) The Contractor retains full and complete responsibility for the operation of the project in keeping with the above referenced rules and regulations.
 - (ii) The Contractor will be held accountable by the Agency for all project expenditures. The Contractor shall ensure that all expenditures incurred by the subcontractor(s) shall be in accordance with the fiscal policies established by the Agency and the Wyoming state government.
 - (iii) Copies of all subcontracts shall be kept on-site and available for review by the Agency at any time. The Contractor shall ensure that the Agency may conduct on site review of subcontractor(s).
- J. Participate and assist in any efforts undertaken by the Agency to evaluate the effectiveness, feasibility, and costs of the program. This includes periodic or as-needed site reviews conducted by the Agency.
- K. Resolve adverse Agency review(s) or audit finding(s) in accordance with federal, state, and local rules and regulations, federal, state, and local statutes, and the Agency rules, regulations, policies and/or implementation plans.
- L. Have a formalized hearing appeals process in place that would allow applicants and recipients of the Agency funded services the opportunity to appeal the denial of services.
- M. Have a formalized Emergency Preparedness Plan for the place of business where services are provided.
- N. Assure that all Contractor Policies and Procedures have been reviewed in the last twelve months and updated as necessary.
- O. Educate all staff on the requirements for reporting to Adult Protective Services at least once during the Contract period.
- P. Not engage, and not allow any staff member to engage, in any agreement or activity which would constitute a conflict of interest as related to this Contract.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Provide technical assistance and support to the Contractor.
- B. On a periodic or as-needed basis, conduct site reviews to evaluate the Contractor, using criteria developed by the Agency. A site review may include, but is not limited to, personal visits to Contractor, subcontractor(s), and/or Contractor's clients.
- C. Disburse funds to the Contractor in accordance with Section 4 and Attachment A (Statement of Work).
- D. The Agency reserves the right to request additional financial, program, and other documents related to the management of the program.

7. **Special Provisions.**

- A. **Administration of Federal Funds.** Contractor agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of OMB Circulars A-102 and/or 2 C.F.R. Part 215; the cost principles set forth in OMB Circulars A-21, A-87 or A-122 and 48 C.F.R. Part 31; the audit requirements of OMB Circular A-133; and all applicable regulations published in the Code of Federal Regulations or other program guidance as provided by the Agency.
- B. **Aging Division Audit Requirements.** The Contractor agrees to have an audit completed in compliance with the Policy Information Notice FISC-2006-001 of the Aging Division, Wyoming Department of Health. If findings are made which cover any part of this Grant, contractor shall provide one (1) copy of the audit report to the Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to the Agency's records.
- C. **Assumption of Risk.** The Contractor shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. The Agency shall notify the Contractor of any state or federal determination of noncompliance.
- D. **Copyright License and Patent Rights.** Contractor acknowledges that the United States Department of Health and Human Services, Administration on Community Living, the State of Wyoming, and Agency reserve a royalty-free, non-exclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes:
 - (i) The copyright in any work developed under this Contract; and
 - (ii) Any rights of copyright to which Contractor purchases ownership using funds awarded under this Contract. Contractor must consult with the Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Contract.

- E. Environmental Policy Acts.** Contractor agrees all activities under this Contract will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- F. Federal Audit Requirements.** Contractor agrees that if it expends an aggregate amount of \$500,000 or more in federal funds during its fiscal year, it Contractor agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and OMB Circular A-133, Audits of States, Local Governments, and Non-Profit Organizations. If findings are made which cover any part of this Grant, Contractor shall provide one (1) copy of the audit report to the Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- G. Human Trafficking.** As required by 22 U.S.C. 7104(g) and 2 C.F.R. Part 175, this Contract may be terminated without penalty if a private entity that receives funds under this Contract:
- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- H. Kickbacks.** The Contractor certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Contract, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Contract. If the Contractor breaches or violates this warranty, the Agency may, at its discretion, terminate this Contract without liability to the Agency, or deduct from the contract price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- I. Limitations on Lobbying Activities.** By signing this Contract, Contractor certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Contractor or its subcontractors in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.
- J. Monitoring Activities.** Agency shall have the right to monitor all activities related to this Contract that are performed by Contractor or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to

examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Contract; and, to observe personnel in every phase of performance of the related work.

K. Non-Supplanting Certification. Contractor hereby affirms that federal grant funds will be used to supplement existing funds, and will not replace (supplant) funds that have been appropriated for the same purpose. Contractor should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Contract.

L. Program Income. Contractor shall not deposit grant funds in an interest bearing account without prior approval of the Agency. Any income attributable to the grant funds distributed under this agreement must be used to increase the scope of the program or returned to the Agency.

M. Publicity. Any publicity given to the program or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices prepared by or for the Contractor and related to the services and work to be performed under this Contract, shall identify the U. S. Department of Health and Human Services, Administration on Community Living and Agency, as the sponsoring agency and shall not be released without prior written approval of the Agency.

(i) Promotional materials shall not include confidential information.

(ii) All publications and/or promotional materials produced for public distribution with federal funds through this award shall use, at minimum, the following disclaimer:

“This document was developed under Grant(s) from the U. S. Department of Health and Human Services, Administration on Community Living and the State of Wyoming, Department of Health, Aging Division, Senior Services. However, these contents do not necessarily represent the policy of the U. S. Department of Health and Human Services, Administration on Community Living, and the Senior Services Section, and you should not assume endorsement by the Federal or State government.”

N. Suspension and Debarment, Voluntary Exclusion. By signing this Contract, Contractor certifies that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction nor from federal financial or non-financial assistance, nor are any of the participants involved in the execution of this Contract suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension) and CFR 44 Part 17, or are

on the disbarred vendors list at www.epls.gov. Further, Contractor agrees to notify the Agency by certified mail should it or any of its agents become debarred, suspended, or voluntarily excluded during the term of this Contract.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions or amendments to this Contract which are mutually agreed upon by the parties to this Contract shall be incorporated by written instrument, executed and signed by all parties to this Contract.
- B. Applicable Law/Venue.** The construction, interpretation and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment/Contract Not Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set forth in this Contract without the prior written consent of the other party. The Contractor shall not use this Contract, or any portion thereof, for collateral for any financial obligation, without the prior written permission of the Agency.
- D. Audit/Access to Records.** The Agency and any of its representatives shall have access to any books, documents, papers, and records of the Contractor which are pertinent to this Contract. The Contractor shall maintain such records for three years after termination of the Contract, or for three years after final resolution of any dispute rising from the Contract, whichever is later.
- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the Contractor, the Contract may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Contractor at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit the Agency to terminate this Contract in order to acquire similar services from another party.
- F. Award of Related Contracts.** The Agency may undertake or award supplemental or successor contracts for work related to this Contract. The Contractor shall cooperate fully with other contractors and the Agency in all such cases.

- G. Certificate of Good Standing.** Contractor shall provide to Agency a Certificate of Good Standing verifying compliance with the unemployment insurance and workers' compensation programs before and during performing work under this Contract, if applicable.
- H. Compliance with Laws.** The Contractor shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Contract.
- I. Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, data and other work provided to or produced by the Contractor in the performance of this Contract shall be kept confidential by the Contractor unless written permission is granted by the Agency for its release. If and when Contractor receives a request for information subject to this Contract, Contractor shall notify Agency within ten (10) days of such request and not release such information to a third party unless directed to do so by Agency.
- J. Entirety of Contract.** This Contract, consisting of thirteen (13) pages, Attachment A (Statement of Work), consisting of four (4) pages, Attachment B (Grant Application), consisting of twenty-eight (28) pages, and Attachment C (WARM Certificate of Liability Coverage), consisting of one (1), represent the entire and integrated Contract between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict between the Contract and Attachments, the Contract shall govern.
- K. Ethics.** Contractor shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Contractor's profession.
- L. Extensions/Renewals.** Nothing in this Contract shall be interpreted or deemed to create an expectation that this Contract will be extended beyond the term described herein.
- M. Force Majeure.** Neither party shall be liable for failure to perform under this Contract if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party.

- N. Indemnification.** Each party to this Contract shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.
- O. Independent Contractor.** The Contractor shall function as an independent contractor for the purposes of this Contract, and shall not be considered an employee of the State of Wyoming for any purpose. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Contract, and shall be solely responsible for the payment of all federal, state and local taxes which may accrue because of this Contract. Nothing in this Contract shall be interpreted as authorizing the Contractor or its agents and/or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency, or to incur any obligation of any kind on the behalf of the State of Wyoming or the Agency. The Contractor agrees that no health/hospitalization benefits, workers' compensation and/or similar benefits available to State of Wyoming employees will inure to the benefit of the Contractor or the Contractor's agents and/or employees as a result of this Contract.
- P. Nondiscrimination.** The Contractor shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. §27-9-105 et seq.), the Americans with Disabilities Act (ADA), 42 U.S.C. §12101, et seq., and the Age Discrimination Act of 1975 and/or any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this agreement. Federal law requires the Contractor to include all relevant special provisions of this Contract in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.
- Q. Notices.** All notices arising out of, or from, the provisions of this Contract shall be in writing and given to the parties at the address provided under this Contract, either by regular mail or delivery in person at the address provided under this Contract.
- R. Notice and Approval of Proposed Sale or Transfer.** The Contractor shall provide the Agency with the earliest possible advance notice of any proposed sale or transfer or any proposed merger or consolidation of the assets of the Contractor. Such notice shall be provided in accordance with the notices provision of this Contract. If the Agency determines that the proposed merger, consolidation, sale, or transfer of assets is not consistent with the continued satisfactory performance of the Contractor's obligations under this Contract, then the Agency may, at its option, terminate or renegotiate the Contract.
- S. Ownership and Destruction of Documents/Information.** Agency owns all documents, data compilations, reports, computer programs, photographs, data and other work provided to or produced by the Contractor in the performance of this Contract. Upon termination of services, for any reason, Contractor agrees to return

all such original and derivative information/documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers. Upon Agency's verified receipt of such information, Contractor agrees to physically and electronically destroy any residual Agency-owned data, regardless of format, and any other storage media or areas containing such information. Contractor agrees to provide written notice to Agency confirming the destruction of any such residual Agency-owned data.

- T. Prior Approval.** This Contract shall not be binding upon either party, no services shall be performed under the terms of this Contract, and the Wyoming State Auditor shall not draw warrants for payment on this Contract, until this Contract has been reduced to writing, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).
- U. Proof of Insurance.** City of Cheyenne has liability coverage through Wyoming Association of Risk Management (WARM), a joint powers liability that provides risk financing and claims administration to City of Cheyenne, in the amounts and coverage represented by Attachment C (WARM Certificate of Liability Coverage), which is attached to this Contract and incorporated herein by this reference.
- V. Severability.** Should any portion of this Contract be judicially determined to be illegal or unenforceable, the remainder of the Contract shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- W. Sovereign Immunity.** The State of Wyoming and Agency do not waive sovereign immunity by entering into this Contract and the Contractor does not waive governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. §1-39-101, et seq., and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Contract shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- X. Taxes.** The Contractor shall pay all taxes and other such amounts required by federal, state and local law, including but not limited to, federal and social security taxes, workers' compensation, unemployment insurance and sales taxes.
- Y. Termination of Contract.** This Contract may be terminated, without cause, by either party upon thirty (30) days written notice. This Contract may be terminated immediately for cause if the Contractor fails to perform in accordance with the terms and conditions of this Contract.

- Z. Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Contract shall not be construed so as to create such status. The rights, duties and obligations contained in this Contract shall operate only between the parties to this Contract, and shall inure solely to the benefit of the parties to this Contract. The provisions of this Contract are intended only to assist the parties in determining and performing their obligations under this Contract.
- AA. Time is of the Essence.** Time is of the essence in all provisions of this Contract.
- BB. Titles Not Controlling.** Titles of paragraphs are for reference only, and shall not be used to construe the language in this Contract.
- CC. Waiver.** The waiver of any breach of any term or condition in this Contract shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

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9. **Signatures.** The parties to this Contract, either personally or through their duly authorized representatives, have executed this Contract on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Contract.

WYOMING DEPARTMENT OF HEALTH

Thomas O. Forslund, Director

Date

April Getchius, Senior Administrator,
Aging Division

Date

**CONTRACTOR:
CITY OF CHEYENNE**

City of Cheyenne, Mayor **Signature**
DUNS # _____
Employer Federal ID # 83-6000050

Date

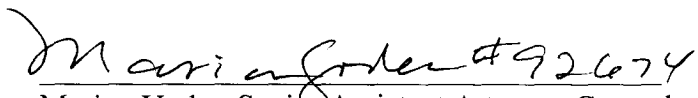
Print Name of Mayor, City of Cheyenne

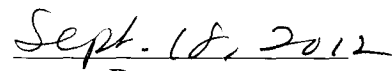
City Clerk, **Witness** to Mayor Signature

Date

Print Name of City Clerk

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM


Marion Yoder, Senior Assistant Attorney General


Date